

Vendor Master Services Agreement

Field	Details
Effective Date	09 September 2026
Customer	AsterGrid Retail Systems LLP
Vendor	PixelForge Cloud Services
Service Type	Managed hosting, maintenance, support
Initial Term	12 months

Commercial Terms

Item	Term
Monthly Fee	INR 1,20,000
Payment Window	45 days from invoice date
Service Credits	Sole remedy for downtime below SLA
Suspension Right	Customer may suspend payment for material breach

Service Levels

The Vendor shall maintain uptime of 98.5 percent, excluding scheduled maintenance. Chronic failure across 3 consecutive months will constitute material default.

Data Security

The Vendor shall implement reasonable security controls, but does not guarantee uninterrupted or error-free service. The Vendor must notify the Customer of any incident without undue delay.

Ownership

All customer data remains property of the Customer. However, the Vendor retains ownership of its pre-existing tools, deployment scripts, templates, and generic know-how.

Warranty Disclaimer

Except as expressly set out in this Agreement, services are provided on an as-is and as-available basis without implied warranties of merchantability, fitness, non-infringement, or uninterrupted availability.

Indemnification

The Vendor shall indemnify the Customer against third-party claims arising from infringement, gross negligence, confidentiality breach, or willful misconduct. The Customer's indemnity obligations are limited to direct infringement claims caused by customer-provided materials.

Liability Cap

The Vendor's total aggregate liability shall not exceed fees paid in the previous one month. Neither party will be liable for indirect losses, except that the Vendor remains fully liable for fraud, data breach, confidentiality violation, and willful misconduct.

Termination

The Customer may terminate for convenience on 10 days notice. The Vendor may terminate only for uncured non-payment continuing beyond 45 days after written reminder.

Renewal and Jurisdiction

This Agreement renews automatically for successive 12-month periods unless either party gives 30 days prior written notice. Courts at Hyderabad shall have exclusive jurisdiction for interim relief, and disputes shall otherwise proceed to arbitration.